Tanzania

Probate and Administration of Estates Act

Probate Rules, 1963

Government Notice 10 of 1963

Legislation as at 11 July 2025

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Tanzania

Probate and Administration of Estates Act

Probate Rules, 1963

Government Notice 10 of 1963

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[Amended by Probate (Amendment) Rules, 2025 (Government Notice 429 of 2025) on 11 July 2025]

[Section 9; G.Ns. Nos. 10 of 1963; 107 of 1963; 369 of 1963]

Part I – Preliminary provisions (rules 1-3)

1. Citation

These Rules may be cited as the Probate Rules.

2. Interpretation

In these Rules, unless the context otherwise requires—

"**Act**" means the Probate and Administration of Estates Act[1];

"**certified copy**" means a copy examined against the original, marked as certified by the Registrar, Deputy Registrar, District Registrar or District Delegate and sealed with the seal of the Court;

"**Minister**" means the Minister responsible for legal matters;

"**petitioner**" means the person applying for grant of probate or letters of administration;

"**prescribed fees**" means the fees prescribed in the Second Schedule to these Rules;

"**Registrar**" means the Registrar of the High Court and includes a Deputy Registrar or Acting Deputy Registrar;

[definition of "Registrar" substituted by rule 2(a) of Government Notice 429 of 2025]

"**sealed**" means sealed with the seal of the Court;

"**special *mirathi* account**" means a bank account opened by an executor or administrator for the purpose of collecting monies forming part of the estate of the deceased.

[definition of "special mirathi account" added by rule 2(b) of Government Notice 429 of 2025]

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3. Jurisdiction of District Delegates and magistrates

Where a District Delegate or a magistrate exercises jurisdiction under the Act then, subject to the limitations imposed by the Act and these Rules, all acts and things directed or allowed to be produced to, lodged or filed with, and all communications directed or allowed to be addressed to or signed and sealed by the court or a Judge or the Registrar under these Rules shall be done by, produced to, lodged or filed with, signed or sealed by and addressed to such District Delegate or magistrate.

Part II – General provisions (rules 4-23)

4. Use of forms in First Schedule

The forms in the First Schedule to these Rules, where applicable, and where they are not applicable, forms of a like character, with such variations as circumstances may require, shall be used. When such forms are applicable any costs occasioned by the use of more prolix forms shall be borne by or disallowed to the party using the same, unless the court shall otherwise direct.

Proceedings (rules 5-8)

5. How entitled

Every proceeding in court under the Act shall be dated and be entitled "Probate and Administration" with the name of the court and the matter to which it relates. Numbers and dates may be denoted by figures as prescribed in Form 1 set out in the First Schedule.

[previous rule 5(1), designated as rule 5 by rule 3(b) of Government Notice 429 of 2025]

(2) *[subrule (2) deleted by rule 3(a) of Government Notice 429 of 2025]*

6. Written proceedings

All proceedings shall be taken down in writing or in any other manner of recording that can reduce the proceedings in a readable form.

[rule 6 substituted by rule 4 of Government Notice 429 of 2025]

7. Copies

(1) Where the court is satisfied that in any particular case the original will or other document lodged with a petition for grant is not, by reason of its physical condition, satisfactory for purposes of record, he may require a photographic copy or an engrossment to be produced in addition to the original document.

[subrule (1) amended by rule 5 of Government Notice 429 of 2025]

(2) A copy produced under paragraph (1) of this rule shall reproduce the punctuation, spacing and division into paragraphs of the original document.

8. Translation in English or Kiswahili

Where any document required under these Rules to be filed with an application or otherwise produced to the court is in any language other than English or Kiswahili there shall be attached to such document a translation thereof in English or Kiswahili made by a person competent to translate the same and verified by such person by affidavit in the form prescribed in Form 2 the First Schedule.

[rule 8 amended by rule 6 of Government Notice 429 of 2025]

Notices, process and orders (rules 9-12)

9. Notices to be in writing

All notices required by the Act or these Rules shall be in writing unless the Act or these Rules otherwise provide or the court shall in any particular case otherwise order.

10. Process to be sealed

All summons, notices, citations, orders, warrants and other process issued by the court shall be sealed.

11. Copy of order to be served on petitioner

Where under the Act or these Rules the court makes an order requiring a petitioner to file in or produce to the court any affidavit or other document then, unless such order was made by the court in the presence of the petitioner, a certified copy of the order shall be served upon him.

12.

[rule 12 deleted by rule 7 of Government Notice 429 of 2025]

Service (rule 13)

13. Method

Service of any petition, notice of application, affidavit, caveat, citation, appearance or order of the court required by these Rules or by the court to be served on any party shall be by personal service:

Provided that the court may in any case grant leave for substituted service in such manner as it may direct.

Chamber applications (rules 14-19)

14. Applications to be *ex parte*

(1) Every application required to be made under these Rules by chamber summons shall, unless otherwise provided, be made *ex parte*:

Provided that, where any party other than the applicant is affected by the application, the court may adjourn the hearing of the application and order that a notice of the application and a copy of the affidavit filed in support thereof be served upon such party.

(2) A chamber summons shall be in the form prescribed in Form 4 set out in the First Schedule.

(3) The notice referred to in the proviso to paragraph (1) shall be in the form prescribed in Form 5 set out in the First Schedule.

15. Length of notice

Where under these Rules or by an order of the court a notice of an application or a copy of an application and copies of any affidavits supporting it are to be served on any party, then, unless the court otherwise directs, such notice and such copies shall be served on such party not less than eight days before the date fixed for the hearing of the application and such party shall have the right to file a counter-affidavit and to appear and be heard at the hearing of the application.

16. Counter-affidavit

Where a respondent intends to use affidavits in opposition to an application, he shall deliver copies of such affidavits to the applicant not less than two days before the day appointed for the hearing.

17. Hearing

Every application under these Rules shall, unless the court otherwise directs, be heard in chambers.

[rule 17 substituted by rule 8 of Government Notice 429 of 2025]

18. Filing affidavits

Every affidavit to be used in supporting or opposing any application shall, unless the court otherwise directs, be filed with the Registrar not later than the day before the day appointed for hearing.

[rule 18 amended by rule 9 of Government Notice 429 of 2025]

19. Costs

On any application filed under these Rules the court may make such order or orders as to costs as it deems fit.

Records and registers (rules 20-21)

20. Record of the court register of wills

(1) All proceedings of the court shall remain on record in the court, and so as to form a complete record of each matter, and they shall not be removed for any purpose except for use by an officer of the court, or by special direction of a Judge:

Provided that the original will shall be removed from the record by the Registrar immediately after the grant and shall be preserved in a safe provided for the purpose.

(2) Where the original will is removed from the record under paragraph (1) of this rule, a certified copy of the will shall be placed on the record.

(3) Wills deposited in a safe shall be numbered consecutively in each court in which they are so deposited and a register of such wills shall be maintained.

21. Register of grants

Every court having power under the Act to issue grant of probate or letters of administration either general, special or limited, or to appoint an administrator, shall keep a register in which shall be entered—

(a) the serial number of the proceedings;

(b) the name of the deceased;

(c) the date of the deceased's death;

(d) the gross value of the estate;

(e) the date of the grant or appointment of the administrator;

(f) the name of the executor or administrator to whom the grant has been made;

(g) whether inventory filed;

(h) whether account filed;

(i) the date when administration completed;

(j) whether any unclaimed assets and how dealt with;

(k) whether caveat filed and by whom; and

(l) if the proceedings became contentious, the result of the same.

[paragraph (l) amended by rule 10 of Government Notice 429 of 2025]

Copies and search (rules 22-23)

22. Office copies

(1) Office copies of petitions, wills, codicils, grants, affidavits, citations, orders or other proceedings shall be supplied by the Registrar to any person applying for the same and paying the prescribed fees.

(2) The office copies shall, except as to figures, be fairly written at length and be sealed and delivered without any unnecessary delay.

23. Search

(1) Search of the proceedings under the Act or any register maintained under these Rules shall be granted to any person applying for the same and paying the prescribed fee.

(2) Search shall be granted only during working hours.

[subrule (2) amended by rule 11 of Government Notice 429 of 2025]

Part III – Protection of estates pending grant (rules 24-25)

24. Appointment of receiver

(1) An application for appointment of a receiver under section 10 of the Act shall be made by chamber summons supported by an affidavit or affidavits in the form prescribed in Form 6 set out in the First Schedule showing—

(a) the date of the death of the deceased;

(b) the domicile of the deceased;

(c) whether the deceased died testate or intestate;

(d) whether an application for grant of probate or letters of administration has been made to any court and if so by whom;

(e) the names and addresses of person entitled to inherit the estate;

(f) the estimated gross value of the estate;

(g) the description and value of the property in respect of which the application is made; and

[paragraph (g) amended by rule 12(a)(ii) of Government Notice 429 of 2025]

(h) the reasons for making the application.

[paragraph (h) amended by rule 12(a)(iii) of Government Notice 429 of 2025]

(i) *[paragraph (i) deleted by rule 12(a)(iii) of Government Notice 429 of 2025]*

[subrule (1) amended by rule 12(a)(i) of Government Notice 429 of 2025]

(2) Except where the proposed receiver is the Public Trustee or the Administrator-General, the application shall be supported by an affidavit showing that the person proposed to be appointed as receiver is a fit and proper person to be so appointed.

[subrule (2) substituted by rule 12(b) and (c) of Government Notice 429 of 2025]

(3) An order appointing a receiver shall be in the form prescribed in Form 7 set out in the First Schedule.

25. Sale by receiver

(1) An application by a receiver under section 11 of the Act for an order of sale of any property shall be by chamber summons supported by an affidavit setting out the reasons for making such application.

(2) An order of sale shall be in the form prescribed in Form 8 set out in the First Schedule.

Part IV – Renunciation by executors (rules 26-27)

26. Renunciation

Where an executor renounces his right to probate in writing such renunciation shall be in the form prescribed in Form 9 of the First Schedule.

27. Citation to accept or renounce executorship

(1) An application for a citation directed to the executor or executors renounce appointed by a will calling upon him or them to accept or his or their executorship shall be made by chamber summons supported by an affidavit in the form prescribed in Form 10 set out in the First Schedule, setting out the grounds for such application.

(2) A citation under paragraph I shall be in the form prescribed in Form 11 set out in the First Schedule and shall be served upon the persons named in the citation.

(3) The court issuing the citation shall fix the period within which the persons cited may enter an appearance.

(4) An appearance shall be in the form prescribed in Form 12 set out in the First Schedule and a copy thereof shall be served on the persons who applied for the citation.

(5) Where a person cited makes default in appearance within the time limited for such appearance the court shall endorse on the court record a certificate to that effect.

[subrule (5) amended by rule 13(a) of Government Notice 429 of 2025]

(6) Where a person cited has entered an appearance but has failed to apply for probate within the period of fourteen days from the date of his appearance or such other time as the court may direct, the citor may apply to the court by chamber summons supported by an affidavit for an order fixing the time within which the person cited shall apply for grant of probate and Such order shall be in the form prescribed in Form 13 set out in the First Schedule.

[subrule (6) substituted by rule 13(b) of Government Notice 429 of 2025]

(7) A copy of the chamber summons under paragraph (6) and of the affidavit in support thereof shall be served upon the person cited.

(8) Where the court makes an order limiting the time within which a person cited shall apply for grant of probate, and such person has failed to apply for grant of probate within such time, the citor may apply in writing for an order that the person cited shall be deemed to have renounced his right to probate.

Part V – Revocation and alteration of grants (rules 28-29)

28. Rectification of grant

(1) An application for rectification of a grant under section 48 of the Act, may be made orally, informally in writing or by chamber summons supported by an affidavit.

[subrule (1) substituted by rule 14 of Government Notice 429 of 2025]

(2) An order for rectification shall be in the form prescribed in Form 14 set out in the First Schedule.

29. Annulment of the grant

[heading substituted by rule 15(a) of Government Notice 429 of 2025]

(1) An application for revocation or annulment of a grant under section 49 of the Act shall be made by chamber summons supported by an affidavit setting out the grounds for such application.

(2) Notice of an application made under paragraph (1) and a copy of the affidavit filed in support thereof shall be served on the person or persons to whom the grant was made.

(3) An order annulling a grant shall be in the form prescribed in Form 15 set out in the First Schedule.

(4) When the court has made an order annulling a grant the Registrar shall cause a notice in the form prescribed in Form 16 set out in the First Schedule to be served, in such manner as he may think fit, upon the person or persons to whom the grant was made requiring him or them forthwith to deliver up the probate or letters of administration to him.

[rule 29 amended by rule 15(b) of Government Notice 429 of 2025]

29A. Revocation of executor or administrator

(1) An application for removal of the executor or revocation of letters of administration under section 49 of the Act shall be as prescribed in Form 26 of the First Schedule and shall be accompanied by an administrator's oath and administrator's bond.

(2) Where the executor or administrator who has been removed or revoked was a sole executor or administrator, the court may, in the interest of justice and where there is no application by any interested person for more than three months from the date of the revocation, appoint the Administrator General or any other fit person to administer the unadministered estate.

(3) Notice of an application made under this rule shall be served on the person or persons to whom the grant was made.

(4) The provisions of rule 29(3) and (4) and the Forms prescribed therein, shall apply *mutatis mutandis* to an application made under this rule.

(5) Appointment of another executor under this rule, shall be subject to the terms of the Will.

[rule 29A added by rule 16 of Government Notice 429 of 2025]

Part VI – Practice and procedure in granting probate and letters of administration (other than small estates) (rules 30-84)

A. Application for grant (rules 30-53)

General

30. Grant in additional name

Where it is necessary in a grant to describe the deceased by some name in addition to his true name, the petitioner shall together with his petition file an affidavit giving the true name of the deceased and the reason for the inclusion of the other name in the grant.

31. Delay in application

(1) In any case where probate or administration is for the first time applied for after expiration of twelve months from the death of the deceased, the petition shall contain a statement explaining the delay.

[subrule (1) amended by rule 17 of Government Notice 429 of 2025]

(2) Should the explanation in the petition be unsatisfactory the Court may require such further proof of the alleged cause of delay as it may think fit.

32. Grant to sole administrator

Where an application for letters of administration with or without the will annexed is made by an individual alone such individual shall file together with his petition, in addition to the other documents required to be filed under these Rules, an affidavit in the form prescribed in Form 17 set out in the First Schedule showing that there is no minority or life interest arising under the will or on the intestacy. Such affidavit shall be deposed to by a person able to depose to the facts stated therein.

Probate

33. Petition for probate

A petition for grant of probate shall be in the appropriate form prescribed in Forms 18, 20, 21 and 22 set out in the First Schedule and shall be accompanied by the following documents—

(a) the last will of the deceased and all codicils thereto and, when necessary, a translation thereof;

(b) subject to the provisions of rule 63, a certificate of death of the deceased signed by a competent authority;

(c) the executor's oath.

[Previous paragraph (c) deleted by rule 18(b) and previous paragraph (d) designated as paragraph (c) by rule 18(c) of Government Notice 429 of 2025]

[rule 33, previously subrule (1), renumbered by rule 18(a) of Government Notice 429 of 2025]

34. Verification

(1) Verification of a petition by an attesting witness shall be in the form prescribed in Form 19 set out in the First Schedule.

(2) An application for an order to dispense with verification of a petition for grant of probate by one of the witnesses to the will shall be made by chamber summons supported by affidavit.

(3) The affidavit filed in support of an application under paragraph (2) of this rule shall state the grounds upon which the order is applied for and shall also state what other evidence, if any, of due execution of the will the petitioner can produce.

(4) Where the court makes an order dispensing with verification of a petition for a grant of probate by one of the attesting witnesses it may require the petitioner to produce such other evidence on affidavit as it may consider necessary for the purpose of being satisfied that the will was duly executed by the testator.

(5) An application under this rule shall be filed together with the petition and all other documents required to be lodged therewith:

Provided that, where the court refuses to make an order dispensing with verification of the petition by an attesting witness, the court shall make an order that the verification by such a witness be lodged and the Will be marked.

[subrule 5 amended by rule 19 of Government Notice 429 of 2025]

35. Oral wills

(1) Where a petitioner applies under section 25(3) of the Act for grant of probate of an oral will he shall file with his petition the following documents in addition to the documents required to be filed under these Rules—

(a) an affidavit by a person having personal knowledge of the terms of the will setting out such terms and the circumstances under which he became aware of the same; and

(b) subject to the provisions of rule 71, consents in writing to the application for grant from the persons who, if the testator had died intestate, would have been entitled to a share in the estate.

(2) The petition for grant shall give all the facts and describe all the circumstances which may raise a presumption that the testator was a person entitled in law to make an oral will.

(3) The court may require the petitioner to produce further evidence by affidavit or otherwise for the purpose of satisfying itself of the existence of the will, its terms or the circumstances under which it was made.

36. Wills lost or destroyed

(1) Where a petitioner applies under section 25 of the Act for grant of probate of a will which has been lost, misplaced or destroyed and of which no copy or draft is available he shall file with his petition the following documents in addition to the documents required to be filed under these Rules—

(a) an affidavit as to the due execution of the original will by one of the witnesses who attested the original will or, if no such witness is conveniently available, from any other person who was present when the will was made or who can testify as to the facts which may raise a presumption in favour of due execution;

(b) an affidavit of the contents of the will from any person having personal knowledge of such contents;

(c) an affidavit proving the existence of the will after the death of the testator or, where the will has been destroyed, the circumstances of such destruction; and

(d) subject to the provisions of rule 71, consents in writing to the application for grant from the persons who, if the testator had died intestate, would have been entitled to a share in the estate.

(2) The court may require the petitioner to produce further evidence by affidavit or otherwise for the purposes of satisfying itself as to the existence of the will, its contents or the circumstances in which it was lost, misplaced or destroyed.

37. Probate of copy or draft of will

(1) Where a petitioner applies under section 25 for grant of probate of a copy or draft of a will he shall file with his petition in addition to the documents required to be filed under these Rules an affidavit or affidavits—

(a) showing that the copy produced is an accurate copy of the original will; and

(b) proving the existence of the will after the death of the testator or, where the will has been destroyed, the circumstances of such destruction or where the original is in possession of a person outside Tanzania, that such person has refused or neglected to deliver it up.

(2) The court may require the petitioner to produce further evidence on affidavit or otherwise for the purpose of satisfying itself as to the existence of the original will, the accuracy of the copy or the draft or the circumstances of loss or destruction.

38. Codicil propounded after probate

(1) Where a codicil is propounded after grant of probate and such codicil does not revoke or alter the appointment of the executors who proved the will, such executors may obtain probate of the codicil upon filing a petition for grant supported by the codicil and such petition shall be in the form prescribed in Form 23 set out in the First Schedule.

(2) Where a codicil is propounded after grant of probate and such codicil revokes or alters the appointment of the executors who proved the will, any person named as an executor in the codicil, or, if there be no such person and the codicil has revoked the appointment of the executors under the original will, any person entitled to letters of administration with the will annexed, may apply for grant of probate of the original will and the codicil or letters of administration with the will and the codicil annexed, as the case may be.

(3) An application for grant of probate or letters of administration under paragraph (2) of this rule shall be by way of petition in the form prescribed in Form 24 or 25 set out in the First Schedule, whichever is appropriate, setting out the date of the grant of the probate of the original will or of letters of administration with the will annexed and the circumstances under which discovery of the codicil was made and such application shall be supported by the consents of the executors who proved the will and by the documents required by those Rules to be filed with an application for grant of probate or letters of administration with a will annexed with the exception, of the testator's death certificate and the affidavit as to his domicile.

Letters of administration

39. Petition for letters of administration

A petition for letters of administration shall be in the form prescribed in Form 18 set out in the First Schedule, and shall be accompanied by the following documents—

(a) subject to the provisions of rule 63 a certificate of death of the deceased signed by a competent authority;

(b) an affidavit as to the deceased's domicile;

(c) an administrator's oath;

(d) subject to the provisions of rule 66, an administration bond;

(e) subject to the provisions of rules 71 and 72, consent of the heirs; and

[Previous paragraph (e) deleted by rule 20(b) and previous paragraph (f) designated as paragraph (e) by rule 20(c) of Government Notice 429 of 2025]

(f) in the case of an application for a grant to a sole administrator, an affidavit as required by rule 32.

[Previous paragraph (g) designated as paragraph (f) by rule 20(c) of Government Notice 429 of 2025]

[rule 39 amended by rule 20(a) of Government Notice 429 of 2025]

40. Petition for letters of administration with the will annexed

A petition for letters of administration with the will annexed shall be accompanied by the will and the documents referred in rule 39.

41. Codicil propounded after grant of letters of administration with will annexed

Where a codicil is propounded after grant of letters of administration with the will annexed and an application is made for grant of probate of the codicil or grant of letters of administration with the codicil annexed the provisions of rule 38 shall apply *mutatis mutandis*.

42. Grants to trust corporations

(1) Where a trust corporation, other than the Public Trustee, applies for a grant, all petitions, applications, oaths, affidavits and other documents whatsoever required to be executed or sworn under these Rules by a proposed executor or administrator may be executed or sworn by any officer of the corporation authorised for the purpose by the corporation and such person shall lodge into the court, a copy of the resolution of the corporation so authorising him.

(2) A petition for a grant by a trust corporation shall be in the form prescribed in Form 28 set out in the First Schedule and shall contain an averment that the corporation is a trust corporation within the meaning of the Act.

(3) Where the Public Trustee applies for a grant he shall state in the body of the petition that the application is made by him as the Public Trustee.

43. Grants to attorneys

An application for grant of letters of administration by a lawfully constituted attorney of a person residing outside Tanzania shall be in the form prescribed in Form 29, 30 or Form 30A set out in the First Schedule and such attorney shall file with his petition for grant the power of attorney constituting him as such attorney and unless such power of attorney can, under section 94 of the Evidence Act, be presumed to have been executed and authenticated as provided by the said section, the court may require further proof of its due execution.

44. Grant during minority

A petition for grant of letters of administration with or without the will annexed by a guardian of a minor or some other person on behalf of a minor under section 36 of the Act shall be in the form prescribed in Form 31 set out in the First Schedule and shall state in what manner, if any, the petitioner is related to such minor and shall be accompanied by a certificate as to the date of the birth of the minor issued by a competent authority, or, where such certificate is not available, by an affidavit from a person able to depose to the date of the birth of the minor.

45. Grant during unsoundness of mind

A petition for grant of letters of administration with or without the will annexed for the use and benefit of a person of unsound mind under section 37 of the Act shall be in the form prescribed in Form 32 set out in

the First Schedule and shall state in what manner, if any, the petitioner is related to such person and shall be accompanied by the following document—

(a) where the person of unsound mind has been committed to a mental hospital under the provision of the Mental Diseases Act[2], a certificate as to his mental condition by the medical officer in charge of such hospital, or, in any other case, an affidavit as to the mental condition of such person from a medical practitioner under whose care and treatment such person is; and

(b) where the care of the estate of the person of unsound mind has been committed to the petitioner by a competent authority, a certified copy of the order of such authority.

46. Grant in respect of unadministered assets

A petition under section 46 of the Act for grant of letters of administration in respect of unadministered estate upon the death of a sole or sole surviving executor or a sole or sole surviving administrator shall be in the form prescribed in Form 33 set out in the First Schedule and shall describe and state the value of the estate remaining unadministered and shall be supported by a certificate of the death or an affidavit as to the death of the executor or the administrator and by an affidavit stating that such executor or administrator was the sole or sole surviving executor or administrator, as the case may be.

47. Cessate grant

A petition for the grant of letters of administration upon the expiry of a limited grant shall be in the form prescribed in Form 34 set out in the First Schedule and shall contain a statement showing that the grant originally made has expired and shall describe and state the value of the portion of the estate remaining unadministered.

48. Grant to creditor

(1) Where a creditor of the deceased applies for the grant of letters of administration under section 33(3) of the Act, the petition shall be in Form 18 of the First Schedule and accompanied by the documents referred to under rule 39.

(2) The petition under this rule shall contain a statement as to the amount of the debt owed and how the same arose:

Provided that, a petition shall not be made by the creditor under this rule except where no grant has been made in respect of such estate or no petition has been filed by the beneficiary within a period of twelve months from the date of the death of deceased.

[rule 48 substituted by rule 21 of Government Notice 429 of 2025]

49. Procedure

A petition for grant under any of the rules 42 to 48 (inclusive) shall, subject to the provisions of any such rule and any exception made by these Rules, be in the same form and be accompanied by the same documents as are required in the case of a petition for a general grant:

Provided that no affidavit as to domicile of the deceased or certificate as to his death shall be required in the case of a petition for grant under rule 46 or 47.

50. Grant pendente lite

An application for appointment of an administrator under section 38 pending the determination of any proceedings shall be by chamber summons supported by an affidavit in the form prescribed in Form 35 set out in the First Schedule, setting out the particulars of the proceedings, the gross value and nature of the estate of the deceased, the date of the death of the deceased and a statement as to the fitness

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of the proposed administrator and shall, subject to the provisions of these Rules, be accompanied by the proposed administrator's oath in the form prescribed in Form 36 set out in the First Schedule and administration bond in the form prescribed in Form 37 set out in the First Schedule.

51. Grant for collection preservation of property

(1) Where an application for letters of administration under section 39 and of the Act is made by a person who has already lodged in the Court a petition for a grant in respect of the same estate, such application shall be made by chamber summons supported by an affidavit in the form prescribed in Form 38 set out in the First Schedule setting out grounds for such application.

(2) In any other case an application for letters of administration under section 39 of the Act shall be by way of a petition setting out, in addition to the particulars required to be given in a petition for a grant of letters of administration under section 33 of the Act the grounds for such application.

(3) A petition under paragraph (2) shall be in the form prescribed in Form 39 set out in the First Schedule and shall, subject to the provisions of these Rules, be accompanied by the following documents—

(a) subject to the provisions of rule 63, a certificate of the death of the deceased;

(b) an affidavit as to the deceased's domicile;

(c) the proposed administrator's oath in the form prescribed in Form 40 set out in the First Schedule; and

(d) an administration bond in the form prescribed in Form 41 set out in the First Schedule.

52. Letters of Administration for a suit

An application for letters of administration for the purpose of becoming or being made a party to a suit under section 40 of the Act shall be by way of chamber summons supported by an affidavit setting out full particulars of the probate or letters of administration, if any, originally granted in respect of the same estate and the grounds upon which such application is made.

53. Letters of administration of trust property

(1) An application for letters of administration limited to trust property under section 41 of the Act shall be made by petition in the form prescribed in Form 42 set out in the First Schedule, stating—

(a) the date and place of the deceased's death;

(b) whether the deceased died testate or intestate and, if testate, the names and addresses of the executors named in the will or, if intestate, the name and addresses of the beneficiaries;

[paragraph (b) amended by rule 22 of Government Notice 429 of 2025]

(c) whether a grant of probate of the will or letters of administration of the estate of the deceased has been made to or applied for by any person and if so, the particulars of the grant or application and the name and address of the grantee or applicant;

(d) description and value of the trust property;

(e) description of the trusts to which the property is subject; and

(f) reasons why a grant of letters of administration limited only to the trust property is required.

(2) A petition under paragraph (1) of this rule shall be accompanied by the following documents—

(a) subject to the provisions of rule 63, a certificate as to the death of the deceased, except where such certificate is already in possession of the court;

(b) the last will and testament of the deceased except where such will and testament is already in possession of the court;

(c) an administration oath in the form prescribed in Form 43 set out in the First Schedule;

(d) an administration bond in the form prescribed in Form 44 set out in the First Schedule;

(e) a certificate as to the financial position of the sureties, if any; and

(f) subject to the provisions of rules 71 and 72, the consent of all the beneficiaries under the trust (except where the petitioner is the sole or the sole surviving beneficiary).

(3) The provisions of these Rules relating to the consent of heirs shall apply to the consent of the beneficiaries required under this rule.

B. Documents Accompanying Application (rules 54-72)

Wills

54. Marking of wills

Every will in respect of which an application for a grant is made shall be marked by the signatures of the petitioner and the witness to the will verifying the petition, or, where verification by such witness has been dispensed with, the deponent of any affidavit filed under paragraph (4) of rule 34:

Provided that where there is no space on the original will for signatures required by this rule or where the original will is in such a condition that compliance with this rule might result in the loss of the will, a photographic copy of the will may be marked *in lieu* of the original document.

55. Attempted revocation

Any appearance of attempted revocation of a will by burning, tearing or otherwise, and every other circumstance leading to a presumption of revocation by the testator, shall be accounted for to the court's satisfaction by affidavit or such other evidence as the court may direct.

56. Evidence as to due execution

Where a will contains no attestation clause or the attestation clause is insufficient or where it appears to the court that there is some doubt as to the due execution of the will, then, unless the will is such as is not required to be signed by the testator or attested by witnesses to constitute a valid disposition of the testator's property, the court may, before admitting it to proof, require an affidavit as to due execution of the will from one or more of the attesting witnesses or, if no attesting witness is conveniently available, from any other person who was present at the time the will was executed.

57. Where no witness available

Where an affidavit required under the preceding rule cannot be obtained or cannot be obtained without undue delay or expense, the court may, upon an application by the petitioner made by chamber summons supported by an affidavit, admit evidence, on affidavit or otherwise, to show that the signature on the will is in the handwriting of the deceased, or of any other matter which may raise a presumption in favour of the due execution of the will.

58. Blind or illiterate testator

Before admitting to proof a will which appears to have been signed by a blind or illiterate testator or which, for any other reason, gives rise to doubt as to the testator having had knowledge of the contents of

the will at the time of its execution, the court may require the petitioner to produce an affidavit from any person it may think fit for the purpose of satisfying itself that the testator had such knowledge.

59. Interlineation

(1) Where there appears in a will any obliteration, interlineation, or other alteration which is not authenticated in the manner prescribed by the Indian Succession Act, 1865 as applied in Tanzania, or by the re-execution of the will or by execution of a codicil, the court shall require the petitioner to produce an affidavit from any person it may think fit to show whether such obliteration, interlineation or alteration was present at the time the will was executed.

(2) After considering the evidence produced under paragraph (1) of this rule the court shall give directions as to the form in which the will is to be proved:

Provided that this rule shall not apply to alterations which appear to the court to be of no practical importance.

60. Where date of the will doubtful

Where there is doubt as to the date of a will the court may require the petitioner to produce an affidavit from such person as it may think fit, for the purpose of establishing the date of the will.

61. Production of deed paper, referred to in will

If from any mark on a will it appears to the court that some other document has been attached to the will, or if a will contains any reference to another document in such terms as to suggest that it ought to be incorporated in the will, the court may require the document to be produced and may require the petitioner to file an affidavit or produce any further evidence between the words from any person it may think fit for the purpose of satisfying itself whether such document is entitled to probate.

[rule 61 amended by rule 23 of Government Notice 429 of 2025]

62. Unsigned or unattested will

In any case in which it is not necessary that a will should be signed by the testator or attested by witnesses to constitute a valid testamentary disposition of the testator's property, the testamentary disposition must be clearly proved by affidavit.

Other document

63. Death certificate

(1) For the purpose of these Rules, a death certificate shall be a document issued by a competent authority.

(2) Where, for any reason beyond the control of the petitioner, a death certificate is not available, the petitioner shall file *in lieu* thereof—

(a) an affidavit from a person who saw the remains of the deceased being interred or cremated;

(b) an affidavit from a medical practitioner, duly registered as such in the country where the deceased died, who pronounced the death of the deceased; or

(c) any other affidavit which, in the opinion of the court, is sufficient to prove the death of the deceased.

[rule 63 substituted by section 24 of Government Notice 429 of 2025]

64. ***

[rule 64 deleted by rule 25 of Government Notice 429 of 2025]

65. Oath

The oath of the executor or the administrator shall be in the form prescribed in Form 47 set out in the First Schedule and shall be sworn or affirmed before a person before whom an affidavit may be sworn or affirmed.

66. Administration bond

(1) Every administration bond shall, except when the court otherwise orders, be given in double the amount of the gross value of the property for which the grant is to be made and shall be in the appropriate form prescribed in Forms 48 or 49 set out in the First Schedule. The bond shall be signed by the administrator and the sureties, who, except where the court otherwise order, shall be two in number. The signatures of the administrator and the sureties shall be attested by a person before whom an affidavit may be sworn.

(2) No administration bond shall be required to be filed on a petition for a grant of letters of administration by the Public Trustee or the Administrator-General.

(3) No surety shall be required on a petition for a grant of letters of administration by a trust corporation (other than the Public Trustee) except where the court otherwise directs.

(4) Unless otherwise directed by order of the court, no person shall be accepted as a surety unless he is resident in Tanzania.

(5) Where a corporation (other than a trust corporation) has executed a bond as a surety, there shall be filed an affidavit in the form prescribed in Form 50 set out in the First Schedule made by a proper officer of the corporation to the effect that it has power to act as surety and has executed the bond in the manner prescribed by its constitution and shall contain sufficient information as to the financial position of the corporation to satisfy the court that its assets are sufficient to satisfy all claims which may be made against it under the bond.

67. Order dispensing with bond or sureties

(1) An application for an order dispensing with a bond or sureties or both or for an order accepting one surety instead of two shall be made by chamber summons supported by an affidavit giving reasons why the order applied for should be made.

(2) An application under paragraph (1) of this rule shall be lodged together with the petition and all other documents required to be lodged therewith except the administration bond.

68. Assignment of administration bond

(1) An application under section 68 of the Act for an order to assign an administration bond shall be by way of petition in the form prescribed in Form 51 set out in the First Schedule, signed by the applicant and his advocate, if any, and verified by the applicant.

(2) A copy of the petition shall be served upon the administrator and each of the sureties.

(3) The petition shall be heard and determined in chambers on a date and at a time appointed by the Registrar.

(4) A notice of the hearing date in the form prescribed in Form 52 set out in the First Schedule shall be served on the petitioner and each of the persons upon whom a copy of the petition is required to be served.

(5) An order assigning a bond shall be in Form 53 set out in the form prescribed in the First Schedule.

69. ***

[rule 69 deleted by rule 26 of Government Notice 429 of 2025]

70. Sureties to to justify in certain cases

In the following cases the surety or sureties shall file a justification of their security in the form prescribed in Form 55 set out in the First Schedule—

(a) where any person takes out letters of administration in default of the appearance of a person cited to accept or refuse a grant who has not been personally served with the citation; or

(b) where application is made for grant of probate or administration for the use and benefit of an infant or a person of unsound mind:

Provided that this rule shall not apply in any case in which no sureties are required under the Act or these Rules or by order of the court, or where the court on an application by a petitioner dispenses with justification from any surety.

71. Consent

(1) Where an application for the grant of letters of administration is made on an intestacy the petition shall, except where the court otherwise orders, be supported by written consent of all those persons who, according to the rules for the distribution of the estate of an intestate applicable in the case of the deceased, would be entitled to the whole or part of his estate.

(2) Where the deceased died testate and an application is made for the grant of letters of administration with the will annexed, written consent shall, unless the court otherwise orders, be required of the following persons–

(a) the universal or residuary legatee; and

(b) such person or persons, being beneficiaries under the will, as would have been entitled to the whole or part of the testator's estate had the testator died intestate.

(3) Where a person whose consent is required is an infant or a person of unsound mind consent may be given on his behalf by his guardian.

(4) Consent shall be in the form prescribed in Form 56 set out in the First Schedule and shall be signed by the person or persons giving the same and attested by any person before whom an affidavit may be sworn.

72. Where consent not available

(1) Where a person whose consent is required under these Rules refuses to give such consent, or if such consent cannot be obtained without undue delay or expense, the petitioner shall, together with his petition for grant, file an affidavit giving the full name and address of the person whose consent is not available (where such name and address are known) and giving the reasons why such consent has not been produced.

(2) Where an affidavit under paragraph (1) is filed, the court may make an order either dispensing with such consent or requiring a citation in the form prescribed in Form 57 set out in the First Schedule to be served upon the person whose consent is not available.

(3) Where the court makes an order under paragraph (2) of this rule requiring service of a citation the Registrar shall call upon the petitioner to pay the prescribed fees for such citation and service and upon receipt of such fees shall cause the citation to be served.

(4) The Court may at any time and for sufficient reason shown vary, alter or rescind any order made under this rule or make such order *in lieu* of an order requiring personal service of citation as it may deem fit.

C. Citations (rules 73-76)

73. Order for citation to issue

Where an application for grant of probate or letters of administration with or without the will annexed is required to be made by way of petition, on receipt of such petition and such other documents as are required to be filed therewith the Registrar shall submit the same to a Judge in chambers, who, if he is satisfied that the application and the supporting documents are in order and no further evidence or proof is required, shall endorse on the record an order directing the Registrar to publish a general citation:

Provided that where the application is made under section 38 or section 39 of the Act, the Judge may dispense with General citation and may order the letters of administration applied for be granted forthwith.

74. Where an application by chambers is required

Where an application for grant of letters of administration is required to be made by chamber summons then at the hearing of such application the court may, if it thinks necessary in the interest of the estate, make an order for publication of a general citation prior to the grant being made.

75. General citation

A general citation shall be in the form prescribed in Form 58 set out in the First Schedule and shall be conspicuously published in a newspaper with a wide coverage or exhibited in such other means as the court may direct.

[rule 75 substituted by rule 27 of Government Notice 429 of 2025]

76. Grant where citation published

Where a general citation is required to be publish by these Rules or by the court no probate of a will or letters of administration shall be granted until after the expiration of fourteen clear days from the date of the last publication of such citation and unless no caveat or objection has been lodged during that period.

D. Production of documents and examination by court (rules 77-81)

77. Application for order to produce testamentary paper

(1) An application under section 60(1) of the Act for an order directing any person to produce any testamentary writing or paper shall be by chamber summons supported by an affidavit setting out the reasons for such application.

(2) Where the court is satisfied that reasons exist for belief that the alleged paper or writing is in the possession of or under the control of the person named in the application it shall direct the Registrar to issue a summons in the form prescribed in Form 59 set out in the First Schedule requiring such person to produce and bring into the court such paper or writing within the period specified in the order.

(3) Where any paper or writing purporting to be testamentary is produced before the court under this rule or rule 78 the court may make such order with regard to its custody as it may deem fit.

78. Application for examination

(1) An application under section 60(2) of the Act for examination of any person alleged to have any knowledge of any testamentary paper or writing or of an oral will shall be by chamber summons supported by an affidavit setting out the reasons for such application.

(2) Where the court is satisfied that reasons exist for the belief that the person named in the application has knowledge of the alleged testamentary paper or writing or oral will it shall direct the Registrar to issue a summons in the form prescribed in Form 60 set out in the First Schedule requiring such person to appear before it on the day named in the summons to answer such questions as may be put to him by the court.

(3) Examination of any person appearing in court pursuant to an order made under this rule shall be on oath unless the court otherwise directs.

79. Penalty for default

A person summoned under rule 77 or 78 shall be liable for the same penalties for default as are prescribed in the Civil Procedure Code[3] in relation to witnesses summoned to give evidence or produce documents.

80. Examination of the petitioner

Where under section 61 of the Act the court requires to examine the petitioner in person on oath the Registrar shall appoint a date and time for such examination and shall serve a notice of the same in the form prescribed in Form 61 set out in the First Schedule on the Petitioner.

81. Further evidence

Where under section 61 of the Act the Court requires further evidence of any of the matters stated therein it shall direct whether such evidence is to be furnished by affidavit or otherwise.

E. Contentious proceedings (rules 82-83)

82. Caveat and procedure subsequent thereto

(1) A caveat shall be in Form 62 of the First Schedule and shall be served to the petitioner within seven days of filing.

(2) Service of a caveat under this rule shall be in accordance with the provisions of the Civil Procedure Code.

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(3) Upon filing of the caveat, the court shall issue an order to the petitioner requiring him to lodge an application for citation to the caveator within a period of fourteen days from the date of service of such notice or such other period as the court may direct.

(4) Application under this rule shall be in Form 63 set out in the First Schedule.

(5) Where the petitioner fails to make an application under subrule (3), the petition shall be deemed to have been withdrawn, and he shall be precluded from filing a fresh petition.

(6) Where the petition is deemed to have been withdrawn under this rule, it shall be open to the petitioner to apply to the court for its restoration, and where it appears to the court that it is just and equitable to restore the petition, it shall make an order restoring the petition upon such terms as to costs or otherwise as it considers fit:

3 Cap. 33

Provided that, a petition shall not be restored where any grant of probate or letters of administration in respect of the estate made by any court in favour of any person, is subsisting.

(7) An application for the restoration of a petition shall be by chamber summons supported by an affidavit stating grounds for the application, and shall be accompanied by an application under subrule (3).

(8) Upon grant of the application under subrule (7), the court shall issue a citation to a caveator as prescribed in Form 64 of the First Schedule, calling upon the caveator to state, within a period of fourteen days from the date of the service of the citation upon him, whether he supports the grant of probate or letters of administration to the petitioner, and, if he does not, requiring him to enter an appearance.

[rule 82 substituted by rule 28 of Government Notice 429 of 2025]

82A. Appearance by caveator

(1) Appearance by a caveator shall be as prescribed in Form 65 of the First Schedule and shall be accompanied by an affidavit stating the interest of the caveator and the grounds for the objection to the petition.

(2) A copy of the appearance and the affidavit filed under this rule shall be served upon the petitioner who may file a counter affidavit.

(3) Where the caveator enters an appearance, the proceedings shall take the form of a suit, in which the petitioner shall be treated as the plaintiff and the caveator as the defendant.

[rule 82A inserted by rule 29 of Government Notice 429 of 2025]

83. Contentious proceedings before a District Delegate

Where an application for grant of probate or letters of administration has been made to a District Delegate in respect of an estate the gross value of which exceeds fifteen thousand shillings and a person who has filed a caveat against such application has entered an appearance, the District Delegate shall upon receipt of the appearance and the affidavit in support thereof proceed as per section 54(1) of the Act.

[rule 83 amended by rule 30 of Government Notice 429 of 2025]

F. Grants (rule 84)

84. Form and signature of grants

Every grant for probate or letters of administration shall be signed and sealed by the court and shall, in case of grants under rules—

(a) 33, 35, 36, 37, 38, 39, 40, 41, 42, 47, 48 and 93, be in Form 66 of the First Schedule; and

(b) 43, 44, 45, 46, 50, 51 and 53, be in Forms 69, 70, 71, 72, 73, 74 and 75 respectively.

[rule 84 substituted by rule 31 of Government Notice 429 of 2025]

Part VII – Administration of small estates (rules 85-95)

85. Application

A petition for appointment of an administrator under Part VIII of the Act shall be by petition in Form 18 of the First Schedule, and shall be accompanied by a death certificate or affidavit as prescribed under rule

63 of these Rules, undertaking in the form prescribed in Form 77 set out in the First Schedule and security where the court considers necessary.

[rule 85 substituted by rule 32 of Government Notice 429 of 2025]

86. Written wills

Where the deceased has left a written will, a petition under rule 85 shall be accompanied by the original will and, unless oral evidence in support of the petition is to be given, by an affidavit as to its due execution from one of the attesting witnesses or by an affidavit testifying as to such matters which may raise a presumption in favour of the due execution of the will.

87. Oral wills

Where the deceased made an oral will or where the written will has been lost or destroyed and no draft or copy thereof is available then, unless oral evidence in support of the petition is to be given, the petition shall be accompanied by an affidavit of a person having personal knowledge of the terms of the will setting out such terms, the circumstances under which he became aware of the same and such other facts which may raise a presumption in favour of the validity of the alleged will.

88. Copy of will

Where only a copy of a will is available the petition shall be accompanied by an affidavit showing the correctness of the copy, validity of the original will and reasons why the original will has not been produced.

89. Where application by by person other than executor named in will

(1) Where an application for appointment of an administrator is made someone other than the person or persons named in the will of the deceased as executor or executors thereof the application shall be supported by written consent of such executor or executors.

(2) The provisions of the rules relating to consent of the heirs shall apply to consent of executors under this rule.

90. Further proof

In all cases in which the court is in doubt as to any matter relating to any will it shall call for such further evidence, on affidavit or otherwise, as it shall consider necessary.

91. ***

[rule 91 deleted by rule 33 of Government Notice 429 of 2025]

92. Security

Where the court makes an order requiring an administrator of a small estate to furnish security it shall specify what form such security shall take.

93. Appointment

An appointment of an administrator of a small estate shall be in Form 66 set out in the form prescribed in the First Schedule.

[rule 93 amended by rule 34 of Government Notice 429 of 2025]

94. Rules not to apply

The provisions of Parts IV, V and VI of these Rules (other than the provisions of rules 30, 31, 32, 63, 77, 78, 79 and 80) shall not apply to proceedings under Part VIII of the Act.

95. Appeals

Appeals under section 83 of the Act shall be in accordance as nearly as may be with the provisions of the Civil Procedure Code[4] and rules of court governing appeals and subject to the same fees, so far as the same shall be applicable.

Part VIII – Estate administered in accordance with customary law and custom (rule 96)

96. Application

An application under section 92(1)(b) and (c) of the Act shall be by chamber summons supported by an affidavit setting out grounds for such application and showing whether any proceedings in respect of the estate have been filed or are pending in any court.

[rule 96 amended by rule 35 of Government Notice 429 of 2025]

Part IX – Resealing (rules 97-104)

97. Jurisdiction

All proceedings under Part X of the Act shall be commenced in the High Court and all necessary papers shall be lodged with the Registrar.

[rule 97 amended by rule 36 of Government Notice 429 of 2025]

98. Application

An application for sealing of a probate or letters of administration shall be by chamber summons supported by an affidavit and accompanied by the probate or letters of administration and a copy thereof.

99. Publication of notice

Notice of an application under rule 97 shall be in the form prescribed in Form 79 set out in the First Schedule and shall be published in the *Gazette* and no order shall be made thereon until the expiration of fourteen days after such publication.

100. Objections

Any person wishing to object to an application for sealing of a probate shall have the right to appear and be heard at the hearing of the application.

101. Inventory and valuation

An inventory and valuation of property in respect of which the application is made must be lodged with the Registrar not less than seven days before the date fixed for the hearing of the application.

4 Cap. 33

102. Certification of copy

The Registrar on receiving probate or letters of administration under rule 97 shall cause the copy lodged therewith to be compared with that to be produced to the court and on its conforming therewith shall endorse a certificate to that effect upon the copy which shall be retained by the court.

103. Order

Upon the court making an order for sealing a probate or letters of administration the Registrar shall endorse thereon under the seal of the court a certificate in the following terms—

"Sealed in the High Court of Tanzania by order of the Court dated _____

Registrar".

104. Original to be returned to applicant

The probate or letters of administration, when sealed by the High Court, shall be returned to the person who produced the same:

Provided that all court fees, costs and charges incidental thereto have first been paid.

Part X – Executors and administrators (rules 105-113A)

105. Direction to executors or administrators

An application to the court for directions to an executor or administrator in regard to the estate or in regard to the administration thereof shall be by chamber summons supported by an affidavit giving full particulars of the directions sought and reasons for the same.

105A. Collection of deceased monies and payment procedures

(1) Upon appointment, the executor or administrator shall open a special mirathi account and submit its details to the court.

(2) Subject to any other written law, all monies forming part of the estate of the deceased person shall be deposited into a special mirathi account.

(3) Where circumstance requires, the court shall, in the manner set out in Form 67 of the First Schedule, facilitate the executor or administrator to transfer monies into the special mirathi account.

(4) Upon transfer of the deceased's monies into special mirathi account, the transferor shall submit to court confirmation of such transfer which shall be accompanied by a statement of such account from the date of the death of the deceased.

(5) Monies shall not be paid from the special mirathi account except by an order of the court.

(6) The administrator or executor shall provide the details of bank accounts of the beneficiaries in the manner set out in Form 81 of the First Schedule.

(7) The provisions of this rule shall not apply in respect of estates administered by the Administrator-General or the Public Trustee.

[rule 105A inserted by rule 37 of Government Notice 429 of 2025]

106. Inventory and accounts of estates

(1) Subject to the provisions of section 107 of the Act, the court shall fix a specific date for the executor or administrator to appear to exhibit an inventory in the manner set out in Form 80 and accounts of the deceased's estate in the manner set out in Form No. 81 of the First Schedule:

Provided that, where circumstance otherwise requires, inventory and accounts of estate shall be filed upon collection of all the properties of the deceased.

(2) The court may, before expiration of the prescribed period, require the executor or administrator to report on the progress of the administration of deceased's estate.

(3) Upon filing of inventory and accounts of the deceased's estate, every beneficiary under a Will, a person entitled to a share under intestacy or unsatisfied creditor, if any, shall have a right to peruse the court file.

(4) Unless the court orders otherwise, the administrator shall cause heirs and beneficiaries of the estate to appear in court for confirmation of inventory and accounts on the date fixed for such purpose.

[rule 106 substituted by rule 38 of Government Notice 429 of 2025]

107. Objection, confirmation and closure

(1) Where any person with interest in the estate of the deceased is dissatisfied with the inventory or accounts, he may raise objection to the court orally or in writing before confirmation of such inventory or accounts of the estate.

(2) Where an objection has been made, the court shall hear the parties on the objection, determine the objection and give directions to the executor or administrator or confirm the inventory or accounts of the estate.

(3) Upon confirmation of the accounts, the court shall direct the executor or administrator to distribute the estate according to the accounts and perform all acts necessary and to report on completion within the specified time.

(4) Where the report is made under subrule (3), the probate or administration of the estate shall be marked closed:

Provided that, a probate or letters of administration cause shall not be marked closed unless the court is satisfied that all properties have been transferred to the rightful heirs or beneficiaries.

[rule 107 substituted by rule 39 of Government Notice 429 of 2025]

108. Notice annexed to grant

There shall be annexed to every probate and letters of administration a notice in the form prescribed in Form 82 set out in the First Schedule drawing the attention of the executor or the administrator to the provisions of section 107 of the Act and rule 109 of these Rules.

109. Application for extension of time to file inventory or account

(1) An application for extension of time to exhibit an inventory or account shall be made orally or by chamber summons supported by an affidavit stating the reasons for such application.

[subrule (1) amended by rule 40 of Government Notice 429 of 2025]

(2) An application under this rule shall be made before the expiry of the period within which the executor or the administrator is required by the court to file the inventory or account.

110. Final requisition

(1) Where an executor or administrator fails to exhibit an inventory or account within the period specified in section 107 or within the time last appointed by the court, the court shall make an order requiring him to exhibit such inventory or account within such further period as it may think fit and the Registrar shall cause a notice in the form prescribed in Form 83 set out in the First Schedule to be served upon the executor or administrator notifying him of the order of the court and the consequences of non-compliance therewith.

(2) Service of the notice under this rule shall be by personal service or, where in the opinion of the Registrar personal service cannot be effected or cannot be effected without undue delay or expense, by registered post or by affixing a copy of the notice in some conspicuous place in the court house and also some conspicuous part of the house in which the executor or the administrator is known to have last resided or carried on business or personally worked for gain.

111. Notice to creditors

Every executor and administrator empowered to distribute the assets of the deceased shall, within sixty days of his appointment, cause a notice in the form prescribed in Form 84 set out in the First Schedule to be published in the *Gazette* requiring any person having any claim against such assets to inform such executor or administrator within such time, not being less than two months from the date of the notice, as may be fixed in the notice.

112. Payment into court on account of minor

(1) Where under section 124(1) of the Act any other law for the time being in force an executor or administrator pays any money or security or delivers any thing into the court to the account of a person entitled to such money, security or thing under the will or on intestacy, he shall at the time of making such payment or delivery, file an affidavit stating—

(a) the court which granted the probate or letters of administration;

(b) the number of the proceedings in which and the date on which the grant was made;

(c) the name, age and address of the last known address of the person to whose account the payment or delivery is being made;

(d) the reasons why payment or delivery into court is being made;

(e) where the payment or delivery is being made to the account of a minor entitled under a will, whether there is any direction in the will to pay or deliver the legacy to any person on behalf of the minor, and if so, why such payment or delivery cannot be made; and

(f) the amount of the money or particulars of the security being paid or the description and value of the thing being delivered into the court.

(2) Where any money or security is paid or thing is delivered into the court under this rule, the court administrator or any other authorised officer shall, on shall, on the receipt of the money, security or thing and of the prescribed fee, cause a receipt to be issued for the money, security or thing so received to the executor or the administrator paying or delivering the same.

[subrule (2) amended by rule 41 of Government Notice 429 of 2025]

113. Investments of legacies

(1) Where under section 121 of the Act an executor or an administrator is required to invest any sum of money, he shall invest such sum as follows—

(a) in any manner authorised by law for the investment of trust funds; or

(b) by way of fixed deposit with a bank approved by the Minister; or

(c) in the savings bank which is deemed to be duly constituted; or

(d) in such other security as the court may approve on application of the executor or administrator.

(2) An application for approval under paragraph (1)(d) of this rule shall be by chamber summons supported by affidavit.

(3) Where under section 124 of the Act any sum of money is paid into the court to the account of a minor legatee, such sum of money shall, unless the court otherwise directs, be invested in purchasing securities authorised by law for investment of trust funds.

113A. Applications for payment

An application for payment or transfer to any person of any money or security or thing paid or delivered into court in accordance with the provisions of rule 112 shall be by way of chamber summons and all persons who appear to be interested in the money or security or thing shall be served with notice of the application unless the court shall otherwise direct.

Part XI – Miscellaneous provisions (rules 114-118A)

114. Will of living persons deposited with High Court

(1) Wills of living persons may be deposited in the Registry of the High Court at Dar-es-Salaam.

(2) Wills to be deposited under this rule shall be delivered either personally to the Registrar by the testator or his agent or sent to him by registered post.

(3) Every will delivered or sent to the Registrar under this rule shall be in a sealed envelope.

(4) Where the testator himself deposits his will, he shall be required to sign his name, or acknowledge his signature in the presence of the Registrar, to an endorsement on the envelope in which the will is enclosed in the Form 85 set out in the First Schedule.

(5) Where the testator sends his will to the Registrar by registered post or by the hand of an agent the envelope shall be endorsed as required by the preceding paragraph and the endorsement shall be signed by the testator and attested by a person before whom an affidavit may be sworn.

(6) Where the Registrar receives a will under this rule he shall deliver to the testator or his agent or send to the testator by registered post a certificate of the deposit in the Form 86 set out in the First Schedule.

(7) Sealed packets containing wills received under this rule shall be numbered consecutively and a register of such packets shall be maintained.

(8) All sealed packets containing wills received under this rule shall be preserved in a safe to which only the Registrar shall have access.

(9) On the death of a testator who has deposited a will under this rule an executor named as such on the endorsement on the envelope, or where no such executor is living or all such executors have renounced, then any person entitled to letters of administration with the will annexed under section 29 of the Act may apply in writing to the Registrar for a copy of the will.

(10) An application under the preceding paragraph shall be accompanied by the following—

(a) a certificate as to the date of the death of the testator or, where such certificate is not available, such evidence as to his death as is admissible under rule 63;

(b) the certificate of deposit in respect of the will issued under paragraph (6) of this rule or, where such certificate has been lost or destroyed, an affidavit as to the circumstances of such loss or destruction;

(c) an affidavit from the applicant stating—

(i) that he is the executor named in the will; or

(ii) that all the executors named in the will have renounced or are dead and that he is a person entitled to letters of administration with the will annexed.

(11) The Registrar may, if he thinks it necessary, require an applicant under paragraph 9 to attend and acknowledge before him or a District Registrar or the Deputy Registrar that he is an executor named in the will or a person who may reasonable be considered as entitled to letters of administration with the will annexed.

(12) On receipt of an application under paragraph 9 and upon being satisfied as to the identity of the applicant the Registrar shall open the envelope containing the will and cause it to be copied.

(13) The copy of the will shall be certified by the Registrar as being a true copy of the original document deposited in the Registry and shall be delivered to the person applying for the same upon payment by him of the prescribed fee.

(14) Where under this rule a will has been deposited in the Registry at Dar-es-Salaam, application for grant of probate of the will or for letters of administration with the will annexed or for appointment of an administrator shall be accompanied by a copy of such will certified by the Registrar as provided in paragraph (13) of this rule, and the petition for grant or application for appointment shall state that the original will is in the custody of the Registrar of the High Court at Dar-es-Salaam.

(15) On receipt of an application for grant or appointment of an administrator under the preceding rule the court to which such application has been made shall certify to the Registrar that such application has been received, and upon receipt of such certificate the Registrar shall send the original will to the court to which the application has been made, and such court shall deal with the original will in the same manner as though it had been lodged by the applicant together with the application.

(16) Where under paragraph (14) of this rule a certified copy of the will is lodged with an application for grant of probate or letters of administration, such certified copy shall be marked as required by rule 54 *in lieu* of the original document.

(17) Where under paragraph (15) of this rule the Registrar parts with the possession of a will which has been deposited with him he shall place in the safe *in lieu* of the original document a certified copy of the same.

115. Returns by District Delegates and Magistrates

(1) At the end of every month every District Registry, District Delegate and District Court, exercising jurisdiction under this Act and these Rules, shall submit to the Registrar of the High Court at Dar-es-Salaam returns of grants and appointments made in such District Registry or by such District Delegate or District Court during the month.

(2) The returns under paragraph (1) of this Rule shall show—

(a) the date and number of the application;

(b) the name and address of the applicant;

(c) the name and address of the deceased and the place and date of his death;

(d) the gross value of the estate;

(e) the nature of the grant or appointment made;

(f) the name and address of the person to whom the grant has been made or who has been appointed administrator;

(g) the name of the Judge, District Delegate or Magistrate issuing the grant or making the appointment.

115A. Defective application

(1) Where it appears to the court that any petition or application or any document filed therewith is defective in substance or form it may make an order—

(a) requiring the petitioner or applicant or his advocate to file a fresh petition, application or document amended in such respects as may be specified in the order or to show cause why no such amended petition, application or document should be required; or

(b) requiring the petitioner or applicant or his advocate to show cause why the petition or application should not be rejected.

(2) Where the court makes an order under paragraph (1) of this rule the Registrar shall cause a notice to be served on the petitioner or applicant or his advocate directing him—

(a) to file an amended petition, application or document or to apply for a date to be fixed for him to show cause why such amended petition, application or document should not be required, within the time specified in the notice; or

(b) to appear on the date specified in the notice to show cause why the petition or application should not be rejected, as the case may be.

[paragraph (b) amended by rule 42(a) of Government Notice 429 of 2025]

[subrule (2) amended by rule 42(b) of Government Notice 429 of 2025]

(3) If a petitioner fails to comply with an order of the court made under this rule his petition or application in respect of which the order is made or to which the document in respect of which the order is made relates, may be rejected by the court but such rejection shall not be a bar to the petitioner or applicant filing a fresh petition or application in respect of the same matter.

[Previous subrule (3) deleted by rule 42(c) and previous subrule (4) designated as subrule (3) by rule 42(d) of Government Notice 429 of 2025]

(4) Minor defect in any application shall not affect the power of the court to entertain such application.

[subrule (4) added by rule 42(e) of Government Notice 429 of 2025]

116. Effect of non-compliance with rules

Non-compliance with any of these Rules, or any rules amending or replacing the same, shall not render any proceeding void unless the court shall so direct, but such proceeding may be set aside either wholly or in part, as irregular, or amended or otherwise dealt with in such manner and upon such terms as the court may think fit.

116A. Return of documents and refund of fees in case of withdrawal or rejection

(1) Where any petition or application is withdrawn by petitioner or applicant or is deemed to have been withdrawn under the provisions of rule 82 or is rejected under the provisions of rule 115A the Registrar shall return to the petitioner or applicant upon his request in writing any of the documents required by these Rules to be filed with such petition or application.

(2) The petitioner or applicant, whose petitioner or application has been withdrawn, or is deemed to have been withdrawn or is rejected, shall not be entitled to a refund of any court fees paid by him in respect of such petition or application except where the court for special reasons otherwise orders.

117. Court fees and revocation

(1) The fees specified in the Second Schedule hereto shall be leviable in respect of the several matters and proceedings mentioned therein.

(2) *[Omitted: The subrule revokes Head V of the Schedule to the Court Fees Rules [5]]*

118. Remission of fees

(1) The Court may for reasons of poverty or other good cause remit in whole or in part the fees or any of the fees payable under these Rules.

(2) An application for remission of fees under this rule shall be by way of chamber summons supported by an affidavit giving grounds for such application.

(3) Where the Court makes an order remitting any fee wholly or in part it shall record its reasons for doing so.

(4) No fee shall be payable on an application under this rule.

118A. Revocation

[Revokes the Probate (Resealing) Rules.]

[5] *A.L. [13] p. 2*

First Schedule

Forms

[form 2 substituted by rule 43(a) of Government Notice 429 of 2025]

[form 3 deleted by rule 43(b) of Government Notice 429 of 2025]

[form 6 substituted by rule 43(c) of Government Notice 429 of 2025]

[form 18 substituted by rule 43(d) of Government Notice 429 of 2025]

[form 26 substituted by rule 43(e) of Government Notice 429 of 2025]

[form 27 deleted by rule 43(f) of Government Notice 429 of 2025]

[form 45 substituted by rule 43(g) of Government Notice 429 of 2025]

[form 54 deleted by rule 43(h) of Government Notice 429 of 2025]

[form 63 substituted by rule 43(i) of Government Notice 429 of 2025]

[form 65 substituted by rule 43(j) of Government Notice 429 of 2025]

[form 66 substituted by rule 43(k) of Government Notice 429 of 2025]

[form 67 substituted by rule 43(l) of Government Notice 429 of 2025]

[form 68 deleted by rule 43(m) of Government Notice 429 of 2025]

[form 77 substituted by rule 43(n) of Government Notice 429 of 2025]

[form 78 deleted by rule 43(o) of Government Notice 429 of 2025]

[form 80 substituted by rule 43(p) of Government Notice 429 of 2025]

[form 81 substituted by rule 43(q) of Government Notice 429 of 2025]

[Please note: Forms have not been reproduced. Please refer to the publication document.]

Second Schedule (Under Rule 117)

Court fees

[Second Schedule substituted by rule 44 of Government Notice 429 of 2025]

SN	Matter for which fees may be charged	Fees in TShs.
1.	On filing application for probate or letters of administration	10,000/=
2.	On filing application for letters of administration where such application is required to be made by chamber summons	10,000/=

SN	Matter for which fees may be charged	Fees in TShs.
3.	On filing application for resealing of a grant	10,000/=
4.	On filing every administration oath or executor's oath	10,000/=
5.	On filing every security	10,000/=
6.	For every grant issued	5,000/=
7.	On filing inventory or account	Included in the filing fees
8.	For every notice or summons issued	Included in the filing fees
9.	On filing every summons or application not otherwise provided for	10,000/=
10.	On filing every affidavit or other documents not otherwise provided for	10,000/=
11.	On filing an amended petition, application or other document	10,000/=
12.	For every order or decree	Included in the filing fees
13.	For inspection of any record or document lodged in the court or for reference to the archives	5,000/=
14.	On making payment of a sum of money or security or delivering a thing into the court to the account of a person entitled to the same under a will or on intestacy 5 percent of the amount so paid or on the declared value of the thing so delivered.	5,000/=

SN	Matter for which fees may be charged	Fees in TShs.
15.	For all other acts, matters and proceedings not specifically provided for above, such fees as are payable in respect of similar acts, matters or proceedings in civil suits shall be payable.	5,000/=